

COMMITTEE AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3464 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Amendment submitted by: Brad Boles

Adopted: _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

PROPOSED OVERSIGHT
COMMITTEE SUBSTITUTE
FOR
HOUSE BILL NO. 3464

By: Boles of the House

and

Paxton of the Senate

PROPOSED OVERSIGHT COMMITTEE SUBSTITUTE

An Act relating to energy; creating the Oklahoma Energy Storage Resource Safety Act; stating legislative intent; defining terms; requiring energy storage resources comply with certain safety codes and standards; providing for resolution if conflict exists; authorizing requirement for certain written report; listing required contents of written report; requiring certain cooperation; requiring certain information be provided; requiring the curing of noncompliance before commencement of operations; requiring certain energy storage resource to have emergency operations plan; listing requirements of emergency operations plan; requiring submission of emergency operations plan; requiring the offering of certain training to local first responders; listing requirements of training; prohibiting certain actions by political subdivisions; requiring certain agreements contain decommissioning provisions; requiring landowner make certain timely requests for grantee compliance; stating certain applicability; requiring certain financial assurance be delivered; stating acceptable forms of financial assurance; requiring certain amount of financial assurance; providing agreement contain certain provisions; detailing agreement provision requirements; assigning

1 certain costs to grantee; prohibiting certain
2 cancellation of financial assurance; making certain
3 agreement provisions void; providing for certain
4 injunctive relief; establishing fees for review and
5 permitting certain facilities by the Office of the
6 Oklahoma State Fire Marshal; limiting the amount of
7 collected fees; providing for distribution of
8 collected fees; requiring completion of certain
9 report as soon as practicable; requiring the State
10 Fire Marshal Commission to adopt certain rules;
11 creating the Oklahoma Solar Energy Development Act;
12 stating legislative findings; requiring owners of
13 solar energy facilities to provide certain statement
14 to landowners; listing minimum requirements of
15 statements; authorizing certain landowners the right
16 to inspect records to verify payments; requiring
17 certain records be made available; detailing the
18 procedure for providing records; requiring the annual
19 reporting of generation, nameplate capacity, and
20 facility location to the Oklahoma Corporation
21 Commission; requiring the keeping of liability
22 insurance policy prior to commencement of
23 construction; requiring landowner be added as
24 additional insured to policy; requiring certain
evidence of policy be submitted to landowner;
requiring certain notice; requiring submission of a
notification of intent to build; requiring
Corporation Commission prescribe form and submission
requirements; listing certain required information;
requiring certain notification to board of county
commissioners or municipality; requiring publication
of certain notice by certain date; requiring copies
of notice be sent to certain specified parties;
requiring an affidavit in certain situations;
requiring the holding of a public meeting; requiring
notice of public meeting be published and submitted;
listing requirements of public meeting notice;
requiring certain notice to surface estate owner;
requiring certain provided information be
confidential and proprietary; requiring parties take
certain actions; stating confidentiality provisions
shall not be limited by certain agreements; providing
for certain penalties; listing requirements of notice
to surface estate; prohibiting commencement of
construction until all notification requirements are
satisfied; requiring notification to Corporation
Commission that certain requirements have been met;

1 providing for certain penalty; stating requirements
2 shall only apply to certain facilities; requiring
3 submission of certain site plans to the Office of the
4 Oklahoma State Fire Marshal at certain time; listing
5 requirements to be included in site plan; limiting
6 review of the Office of the Oklahoma State Fire
7 Marshal; requiring review be completed as soon as
8 practicable; allowing certain on-site actions to
9 proceed during review period; authorizing assessment
10 of certain fee; limiting the amount of collected fee;
11 providing for fee distribution; providing for
12 application to certain facilities; requiring
13 compliance with certain act; requiring submission of
14 certain evidence of financial assurance; providing
15 for certain calculations of financial assurance;
16 requiring financial assurance be certain percentage
17 of decommissioning estimate; authorizing Corporation
18 Commission to promulgate certain rules; granting
19 certain exclusive jurisdiction; providing for
20 codification; and providing an effective date.

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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 180.14 of Title 17, unless there
is created a duplication in numbering, reads as follows:

Sections 1 through 8 of this act shall be known and may be cited as
the "Oklahoma Energy Storage Resource Safety Act".

SECTION 2. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 180.15 of Title 17, unless there
is created a duplication in numbering, reads as follows:

The Legislature finds that:

1 1. To protect the citizens of Oklahoma, energy storage
2 resources shall satisfy safety codes and standards; and

3 2. This act is intended to help Oklahoma secure the benefits of
4 energy storage resources to provide electric grid reliability.

5 SECTION 3. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 180.16 of Title 17, unless there
7 is created a duplication in numbering, reads as follows:

8 As used in the Oklahoma Energy Storage Resource Safety Act:

9 1. "Commencement of operations" means the date on which an
10 energy storage resource first delivers electricity to the grid in an
11 amount sufficient for commercial sale or use off-site from the
12 energy storage resource, but shall not include amounts of electrical
13 energy used only for the maintenance or testing of the energy
14 storage resource or related equipment;

15 2. "Energy storage resource" means a resource capable of
16 receiving electric energy from the electrical grid, or from a
17 generation source with which it is associated, and storing such
18 electric energy for later injection into the electrical grid;

19 3. "Energy storage resource agreement" means a lease agreement
20 between a grantee and a landowner that authorizes the grantee to
21 operate an energy storage resource on the leased property;

22 4. "Grantee" means a person, other than an electric utility
23 who:

24 a. leases property from a landowner, and

b. operates an energy storage resource on the property;
and

5. "Resource owner" means the entity having a majority equity interest in the energy storage resource, including its respective successors and assigns.

SECTION 4. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 180.17 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. An energy storage resource shall comply with the following minimum safety codes and standards for energy storage resource equipment or facilities:

1. The International Fire Code (IFC), as adopted and amended by the Oklahoma Uniform Building Code Commission, in effect at the time a construction permit is applied for; and

2. Criteria described in the National Fire Protection Association (NFPA) 855 2026 Standard for the Installation of Stationary Energy Storage Systems.

Where a conflict exists between the requirements of the IFC, as adopted and amended by the Oklahoma Uniform Building Code Commission, and the NFPA 855 2026 edition, the provisions of the NFPA 855 2026 edition shall take precedence.

B. Before a construction permit is issued for an energy storage resource, the entity responsible for fire inspection and primary emergency response may require the resource owner to pay for an

1 independent, third-party engineer licensed in this state or other
2 consultant with appropriate expertise, to provide a written report
3 to the entity responsible for fire inspection and primary emergency
4 response and the resource owner determining:

5 1. Whether the energy storage resource, as proposed, complies
6 with subsection A of this section; and

7 2. To the extent the energy storage resource does not comply
8 with subsection A of this section, any appropriate actions to cure
9 such noncompliance in accordance with the NFPA 855 2026 edition.

10 C. Any resource owner that receives a lawful request pursuant
11 to subsection B of this section shall cooperate with the request.
12 Such cooperation shall include providing the engineer or consultant
13 with all necessary documents relating to the energy storage
14 resource's site layout, emergency operations plan, hazard mitigation
15 analysis, manufacturer specifications, product listings, including,
16 but not limited to, UL 9540 and UL 9540A reports, compliance with
17 the NFPA 855 2026 edition and other applicable referenced standards,
18 electrical drawings, monitoring procedures, and fire protection
19 system, as applicable to the proposed energy storage resource. If
20 the engineer or consultant identifies appropriate actions to cure
21 noncompliance under paragraph 2 of subsection B of this section, the
22 resource owner shall implement said appropriate actions before
23 commencement of operations.

1 D. Energy storage resources, other than energy storage systems
2 installed in one- and two-family dwellings as defined in the NFPA
3 855 2026 edition, in this state shall have and maintain, at an on-
4 site location accessible to local first responders, a site-specific
5 emergency operations plan. In accordance with the NFPA 855 2026
6 edition, the site-specific emergency operations plan shall identify:

7 1. Potential risks and hazards specific to the site;

8 2. Hazard mitigation measures;

9 3. Procedures for the safe shutdown, de-energizing, or
10 isolation of equipment and systems under emergency conditions,
11 including emergency procedures to be followed in case of fire;

12 4. Procedures for handling equipment damaged in a fire or other
13 emergency event;

14 5. Procedures and schedules for conducting drills using the
15 procedures listed under this subsection and documentation related to
16 the performance of the drills;

17 6. Procedures for communication between the operator of the
18 energy storage resource and first responders, including procedures
19 that facilitate communication between first responders and emergency
20 contacts for the resource operator; and

21 7. Emergency operations protocols to ensure safety during
22 critical events, including protocols that provide for the safety of
23 nearby residents, neighboring properties, and first responders.

1 E. Before commencement of operations, the resource owner shall
2 provide the site-specific emergency operations plan to the entity
3 responsible for fire inspection and primary emergency response.

4 F. Energy storage resource owners in this state shall offer to
5 local first responders, at no cost to the responders, education and
6 training regarding responding to an equipment failure incident at
7 the energy storage resource site. The training shall include:

8 1. Training on specific characteristics of the energy storage
9 resource technology;

10 2. Training on protecting first responders during incident
11 response;

12 3. Training on hazards commonly associated with incident
13 response;

14 4. Training on incident response protocols, including an
15 overview of the site-specific emergency operations plan developed
16 under subsection D of this section; and

17 5. An on-site review of the perimeter, major equipment, and
18 ingress and egress to the energy storage resource site.

19 G. Unless expressly authorized by law, political subdivisions
20 in this state shall not adopt, enforce, or maintain any rules,
21 regulations, codes, or standards that uniquely apply to energy
22 storage resources other than those set forth in the Oklahoma Energy
23 Storage Resource Safety Act.

1 SECTION 5. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 180.18 of Title 17, unless there
3 is created a duplication in numbering, reads as follows:

4 A. An energy storage resource agreement executed after the
5 effective date of this act shall provide that the grantee is
6 responsible for removing the grantee's components of an energy
7 storage resource facility from the landowner's property and that the
8 grantee shall, in accordance with any other applicable laws or
9 regulations, safely perform the following:

10 1. Clear, clean, and remove from the property each energy
11 storage resource and associated transformers and substations;

12 2. For each foundation of an energy storage resource,
13 transformer, or substation installed in the ground:

14 a. clear, clean, and remove the foundation from the
15 ground to a depth of at least three (3) feet below the
16 surface grade of the land in which the foundation is
17 installed, and

18 b. ensure that each hole or cavity created in the ground
19 by the removal is filled with soil of the same type or
20 a similar type as the predominant soil found on the
21 property;

22 3. For each buried cable, including power, fiber-optic, and
23 communications cables, installed in the ground:

- a. clear, clean, and remove the cable from the ground to a depth of at least three (3) feet below the surface grade of the land in which the cable is installed, and
- b. ensure that each hole or cavity created in the ground by the removal is filled with soil of the same type or a similar type as the predominant soil found on the property; and

4. Clear, clean, and remove from the property each overhead power or communications line installed by the grantee on the property at the request of the landowner.

B. The agreement shall provide that, at the request of the landowner, the grantee shall:

1. Clear, clean, and remove each road constructed by the grantee on the property; and

2. Ensure that each hole or cavity created in the ground by the removal is filled with soil of the same type or a similar type as the predominant soil found on the property.

C. The agreement shall provide that, at the request of the landowner, if reasonable, the grantee shall:

1. Remove from the property all rocks over twelve (12) inches in diameter excavated during the decommissioning or removal process;

2. Return the property to a tillable state using scarification, V-rip, or disc methods, as appropriate; and

3. Ensure that:

1 a. each hole or cavity created in the ground by the
2 removal is filled with soil of the same type or a
3 similar type as the predominant soil found on the
4 property, and

5 b. the surface is returned as near as reasonably possible
6 to the same condition as before the grantee dug holes
7 or cavities, including by reseeding pastureland with
8 native grasses prescribed by an appropriate
9 governmental agency, if any. Noninvasive grasses
10 shall be allowed when reseeding native grasses is not
11 economically feasible.

12 D. The landowner shall make a request under subsection B or C
13 of this section not later than the one hundred eightieth day after
14 the later of:

15 1. The date on which the landowner receives from the grantee
16 via certified mail a copy of a notification of intent to suspend
17 operations filed with a grid operator indicating an intent to
18 permanently cease operations; or

19 2. The date the landowner receives written notice of intent to
20 decommission the energy storage resource from the grantee.

21 E. The provisions of this section shall only apply to energy
22 storage resource agreements executed after the effective date of
23 this act and shall have no effect on existing agreements.

1 SECTION 6. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 180.19 of Title 17, unless there
3 is created a duplication in numbering, reads as follows:

4 A. An energy storage resource agreement executed after
5 effective date of this act shall provide that the grantee obtain and
6 deliver to the landowner evidence of financial assurance that
7 conforms to the requirements of this section to secure the
8 performance of the grantee's obligation to remove the grantee's
9 energy storage resource facilities located on the landowner's
10 property as described by Section 5 of this act. Acceptable forms of
11 financial assurance include a parent company guaranty with a minimum
12 investment grade credit rating for the parent company issued by a
13 major domestic credit rating agency, a letter of credit, a bond, or
14 another form of financial assurance reasonably acceptable to the
15 landowner.

16 B. The amount of the financial assurance shall be at least
17 equal to the estimated amount by which the cost of removing the
18 energy storage resource facilities from the landowner's property and
19 restoring the property to as near as reasonably possible the
20 condition of the property as of the date the agreement begins
21 exceeds the salvage value of the facilities, less any portion of the
22 value of the facilities pledged to secure outstanding debt.

23 C. The agreement shall provide that:
24

1 1. The estimated cost of removing the energy storage resource
2 facilities from the landowner's property and restoring the property
3 to as near as reasonably possible the condition of the property as
4 of the date the agreement begins, and the estimated salvage value of
5 the energy storage resource facilities, shall be determined by an
6 independent, third-party professional engineer licensed in this
7 state;

8 2. The grantee shall deliver to the landowner an updated
9 estimate, prepared by an independent, third-party professional
10 engineer licensed in this state, of the cost of removal and the
11 salvage value:

12 a. on or before the tenth anniversary of commencement of
13 operations of the energy storage resource facility,
14 and

15 b. at least once every five (5) years thereafter for the
16 remainder of the term of the agreement; and

17 3. The grantee is responsible for ensuring that the amount of
18 the financial assurance remains sufficient to cover the amount
19 required by subsection B of this section, consistent with the
20 estimates required by this subsection.

21 D. The grantee is responsible for the costs of obtaining
22 financial assurance described by this section and costs of
23 determining the estimated removal costs and salvage value.
24

1 E. The agreement shall provide that, if the grantee fails to
2 fulfill the scope of decommissioning and removal work specified in
3 the agreement, the grantee shall deliver the financial assurance not
4 later than the earlier of:

5 1. The date the energy storage resource agreement is
6 terminated; or

7 2. The twentieth anniversary of the commencement of operations
8 of the energy storage resources located on the landowner's property,
9 unless the term of the agreement is extended.

10 F. The grantee may not cancel financial assurance before the
11 date the grantee has completed the grantee's obligation to remove
12 the grantee's energy storage resource facilities located on the
13 landowner's property in the manner provided by this act, unless the
14 grantee provides the landowner with replacement financial assurance
15 at the time of or before the cancellation. In the event of a
16 transfer of ownership of the grantee's energy storage resource
17 facilities, the financial security provided by the grantee shall
18 remain in place until the date evidence of replacement financial
19 security meeting the requirements of this act is provided to the
20 landowner by the transferee.

21 G. The provisions of this section shall only apply to energy
22 storage resource agreements executed after the effective date of
23 this act and shall have no effect on existing agreements.
24

1 SECTION 7. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 180.20 of Title 17, unless there
3 is created a duplication in numbering, reads as follows:

4 A. A provision of an energy storage resource agreement executed
5 after the effective date of the Oklahoma Energy Storage Resource
6 Safety Act that purports to waive a right or exempt a grantee from a
7 liability or duty established under the Oklahoma Energy Storage
8 Resource Safety Act is void and unenforceable, but the remainder of
9 the agreement shall remain enforceable.

10 B. A resource owner shall comply with the decommissioning
11 obligations set forth in the Oklahoma Energy Storage Resource Safety
12 Act. A landowner subject to an energy storage resource agreement is
13 expressly authorized to bring an action in district court for
14 injunctive relief to enforce compliance with this act.

15 C. The provisions of this section are not exclusive. The
16 remedies provided in this section are in addition to any other
17 procedures or remedies provided by other law. Failure to comply
18 with the Oklahoma Energy Storage Resource Safety Act does not impair
19 the validity or enforceability of any lease, easement, mortgage,
20 deed of trust, or other interest in real property.

21 SECTION 8. NEW LAW A new section of law to be codified

22 in the Oklahoma Statutes as Section 180.21 of Title 17, unless there
23 is created a duplication in numbering, reads as follows:

1 A. For energy storage resource facilities located in areas
2 where no recognized local authority having jurisdiction exists, and
3 where, as a result, any component of an energy storage resource
4 facility or the energy storage resource facility itself is subject
5 to inspections, plan reviews, or permits from the Office of the
6 Oklahoma State Fire Marshal, as provided in the codes adopted by the
7 Oklahoma Uniform Building Code Commission, the State Fire Marshal
8 Commission may establish a fee rate of no more than six cents
9 (\$0.06) per square foot of surface physically occupied aboveground
10 by energy storage resource facility infrastructure. Such fee shall
11 be inclusive of all inspections, plan reviews, permit issuance, and
12 other review actions undertaken by the Office of the Oklahoma State
13 Fire Marshal in connection with the project, and the total fee shall
14 not exceed Five Hundred Thousand Dollars (\$500,000.00) for any
15 individual energy storage resource facility. Nothing in this
16 section shall be construed to authorize the collection of fees
17 beyond said amount, except as otherwise provided by law. Where a
18 recognized local authority having jurisdiction exists, such local
19 authority is subject to the same fee limitations as the Office of
20 the Oklahoma State Fire Marshal established in this subsection.

21 B. Any fees collected pursuant to subsection A of this section
22 shall be distributed as follows:

23 1. Seventy-five percent (75%) of such fees shall be
24 distributed to the local fire department providing primary fire

1 protection services to the jurisdiction where the facility is
2 located, within sixty (60) days of receipt. Funds distributed under
3 this paragraph shall be used solely for fire protection, fire
4 prevention, inspections, training, or emergency response activities
5 related to the facility; and

6 2. Twenty-five percent (25%) of such fees shall remain with
7 the Office of the Oklahoma State Fire Marshal for regulatory
8 purposes.

9 C. For purposes of this section, "recognized local authority
10 having jurisdiction" means a city, town, college, county, or fire
11 protection district that has been recognized by the Office of the
12 Oklahoma State Fire Marshal as the authority having jurisdiction for
13 permits, inspections, and enforcement under the adopted codes.

14 D. The Office of the Oklahoma State Fire Marshal or a local
15 authority having jurisdiction, where applicable, shall complete any
16 review subject to subsection A of this section as soon as
17 practicable, and in no event later than thirty (30) calendar days
18 following receipt of complete site plans.

19 E. The State Fire Marshal Commission shall adopt rules as
20 necessary to implement the provisions of this section, pursuant to
21 Section 324.9 of Title 74 of the Oklahoma Statutes, including, but
22 not limited to, fee collection and distributions.

1 SECTION 9. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 160.24 of Title 17, unless there
3 is created a duplication in numbering, reads as follows:

4 A. For wind energy facilities located in areas where no
5 recognized local authority having jurisdiction exists, and where, as
6 a result, any component of a wind energy facility or the wind energy
7 facility itself is subject to inspections, plan reviews, or permits
8 from the Office of the Oklahoma State Fire Marshal, as provided in
9 the codes adopted by the Oklahoma Uniform Building Code Commission,
10 the State Fire Marshal Commission may establish a fee rate of no
11 more than six cents (\$0.06) per square foot of surface physically
12 occupied aboveground by wind energy facility infrastructure. Such
13 fee shall be inclusive of all inspections, plan reviews, permit
14 issuance, and other review actions undertaken by the Office of the
15 Oklahoma State Fire Marshal in connection with the project, and the
16 total fee shall not exceed Five Hundred Thousand Dollars
17 (\$500,000.00) for any individual wind energy facility. Nothing in
18 this section shall be construed to authorize the collection of fees
19 beyond said amount, except as otherwise provided by law. Where a
20 recognized local authority having jurisdiction exists, such local
21 authority is subject to the same fee limitations as the Office of
22 the Oklahoma State Fire Marshal established in this subsection.

23 B. Any fees collected pursuant to subsection A of this section
24 shall be distributed as follows:

1 1. Seventy-five percent (75%) of such fees shall be distributed
2 to the local fire department providing primary fire protection
3 services to the jurisdiction where the facility is located, within
4 sixty (60) days of receipt. Funds distributed under this paragraph
5 shall be used solely for fire protection, fire prevention,
6 inspections, training, or emergency response activities related to
7 the facility; and

8 2. Twenty-five percent (25%) of such fees shall remain with the
9 Office of the Oklahoma State Fire Marshal for regulatory purposes.

10 C. For purposes of this section, "recognized local authority
11 having jurisdiction" means a city, town, college, county, or fire
12 protection district that has been recognized by the Office of the
13 Oklahoma State Fire Marshal as the authority having jurisdiction for
14 permits, inspections, and enforcement under the adopted codes.

15 D. The Office of the Oklahoma State Fire Marshal or a local
16 authority having jurisdiction, where applicable, shall complete any
17 review subject to subsection A of this section as soon as
18 practicable, and in no event later than thirty (30) calendar days
19 following receipt of complete site plans.

20 E. The State Fire Marshal Commission shall adopt rules as
21 necessary to implement the provisions of this section, pursuant to
22 Section 324.9 of Title 74 of the Oklahoma Statutes, including, but
23 not limited to, fee collection and distributions.

1 SECTION 10. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 809 of Title 17, unless there is
3 created a duplication in numbering, reads as follows:

4 Sections 10 through 20 of this act shall be known and may be
5 cited as the "Oklahoma Solar Energy Development Act".

6 SECTION 11. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 809.1 of Title 17, unless there
8 is created a duplication in numbering, reads as follows:

9 The Legislature finds that the prudent development of solar
10 energy resources requires assurances that the rights of private
11 landowners should be protected, that such landowners have access to
12 adequate information to verify the accuracy of their payments, among
13 other protections, and that public and mineral interest operators
14 receive sufficient notice of planned developments.

15 SECTION 12. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 809.2 of Title 17, unless there
17 is created a duplication in numbering, reads as follows:

18 As used in the Oklahoma Solar Energy Development Act:

19 1. "Commencement of construction" means the date on which the
20 owner or developer of a solar energy facility installs a post or
21 posts into the ground for panel foundations. The term shall not
22 include environmental assessments, surveys, preliminary engineering,
23 site preparation, or other activities associated with assessment of
24 development of the solar resources on a given parcel of property;

2. "Facility" means a solar energy facility;

3. "Owner" means the entity having a majority equity interest in a solar energy facility, including its respective successors and assigns;

4. "Racking system" means the permanent structural framework, including foundations, piles, mounts, or tracking equipment that is designed to support, anchor, and orient photovoltaic modules or related solar-energy-producing equipment at a solar energy facility and that is integral to the facility's ability to generate electricity; and

5. "Solar energy facility" means an electric-generating facility using photovoltaic or solar-thermal technologies with a nameplate capacity greater than one (1) megawatt alternating current (AC), designed to deliver energy to the electric grid and not primarily to on-site load, unless otherwise specified by state law.

SECTION 13. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 809.3 of Title 17, unless there is created a duplication in numbering, reads as follows:

For landowners who are paid based on the amount of electrical energy produced from the conversion of solar energy, the owner of any solar energy facility shall provide a statement within ten (10) business days of the payment to the landowner in consideration for the use of the property of the landowner to generate electrical energy. The statement shall provide, at a minimum, information

1 reasonably necessary to assist the landowner an understanding of the
2 basis for the payment to the landowner and a means of confirming its
3 accuracy.

4 SECTION 14. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 809.4 of Title 17, unless there
6 is created a duplication in numbering, reads as follows:

7 A. Any landowner who has, through a lease, easement, or other
8 arrangement, allowed a solar energy facility foundation or racking
9 system to be placed on the property of the landowner and who is paid
10 based on the amount of electrical energy produced from the
11 conversion of solar energy shall have the right to inspect the
12 records of the owner of the solar energy facility for the purpose of
13 confirming the accuracy of any payments made to the landowner within
14 the past twenty-four (24) months.

15 B. The owner of any solar energy facility, any portion of which
16 is located in this state, upon request of a landowner with the right
17 to inspect records as set forth in subsection A of this section,
18 shall make available, within a reasonable time, all records,
19 documents, data, and other information, or copies thereof, as are
20 necessary for a landowner to conduct the inspection specified in
21 subsection A of this section. The records shall be made available
22 within the confines of this state and in a location and manner that
23 affords a landowner reasonable access to the records during normal
24 business hours. The landowner shall be permitted one request per

1 calendar year and be afforded a reasonable length of time to
2 complete the inspection but shall not cause undue disruption to the
3 operations of the owner during the inspection. The records shall be
4 subject to the confidentiality requirements contained in the
5 respective landowner lease agreement.

6 SECTION 15. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 809.5 of Title 17, unless there
8 is created a duplication in numbering, reads as follows:

9 A. The owner of any solar energy facility shall report to the
10 Oklahoma Corporation Commission the electrical energy generated by
11 the solar energy facility, the nameplate capacity of the solar
12 energy facility, and the location of the solar energy facility.

13 B. If a solar energy facility contains generating units with
14 different nameplate capacities, the information required in
15 subsection A of this section shall be reported separately for each
16 nameplate capacity.

17 C. The information required by this section shall be reported
18 on an annual basis, with the information due not later than March 1
19 of each calendar year.

20 SECTION 16. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 809.6 of Title 17, unless there
22 is created a duplication in numbering, reads as follows:
23
24

1 A. Prior to commencing construction of a solar energy facility,
2 the owner of the solar energy facility shall obtain and keep in
3 effect either:

4 1. A commercial general liability insurance policy with
5 coverage limits consistent with prevailing industry standards; or

6 2. A combination of self-insurance and excess liability
7 insurance.

8 B. The owner shall cause the owner of the land on which the
9 solar energy facility is located to be named as an additional
10 insured under the policy.

11 C. The owner shall deliver to the landowner a certificate of
12 insurance evidencing the policy. The landowner shall be given not
13 less than thirty (30) days prior written notice of any material
14 modification, cancellation, or termination of the insurance policy.

15 SECTION 17. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 809.7 of Title 17, unless there
17 is created a duplication in numbering, reads as follows:

18 A. The owner of a solar energy facility shall submit a
19 notification of intent to build a facility to the Oklahoma
20 Corporation Commission at least six (6) months before the
21 commencement of construction, as defined in Section 12 of this act.
22 The Corporation Commission shall prescribe the form and submittal
23 requirements of the notification; provided, the information required
24 on the notification form shall include a description of the

1 facility, the nameplate capacity, the general location of the
2 facility, and a map of the project boundary.

3 The owner of the solar energy facility shall send copies of the
4 notification to the board of county commissioners of every county in
5 which all or a portion of the solar energy facility is to be located
6 within twenty-four (24) hours of filing said notification with the
7 Corporation Commission. If all or a portion of the solar energy
8 facility is to be located within the incorporated area of a
9 municipality, a copy of the notification shall also be sent to the
10 governing body of the municipality within twenty-four (24) hours of
11 filing said notification with the Corporation Commission.

12 B. Within six (6) months of submitting the notification to the
13 Corporation Commission as provided for in subsection A of this
14 section, the owner of the solar energy facility shall cause a copy
15 of the notification to be published in a newspaper of general
16 circulation in the county or counties in which all or a portion of
17 the solar energy facility is to be located. Proof of publication
18 shall be submitted to the Corporation Commission.

19 C. Within six (6) months of submitting the notification to the
20 Corporation Commission as provided in subsection A of this section,
21 the owner of the solar energy facility shall cause a copy of the
22 notification to be sent, by certified mail, to:

23 1. Any operator, as reflected in the records of the Corporation
24 Commission, conducting oil and gas operations upon all or any part

1 of the surface estate on which the solar energy developer intends to
2 construct the solar energy facility;

3 2. Any operator, as reflected in the records of the Corporation
4 Commission, of an unspaced unit or a unit created by order of the
5 Corporation Commission, conducting oil and gas operations for a unit
6 where all or any part of the unit area is within the geographical
7 boundaries of the surface estate on which the solar energy developer
8 intends to construct the solar energy facility; and

9 3. All lessees of oil and gas leases covering the mineral
10 estate underlying any part of the tracts of land that are filed of
11 record with the county clerk in the county where the tracts are
12 located and whose primary term has not expired. This paragraph
13 shall apply to tracts of land not described in paragraphs 1 and 2 of
14 this subsection on which the solar energy developer intends to
15 construct a solar energy facility;

16 4. Any working interest owner of a unit created by order of the
17 Corporation Commission, as identified and provided by the operator
18 of the unit, to the owner of the solar energy facility, within
19 thirty (30) days of request, where all or any part of the unit area
20 is within the geographical boundaries of the surface estate on which
21 the solar energy developer intends to construct the solar energy
22 facility; and

23 5. Any operator of a well permitted by the Corporation
24 Commission for injection or disposal purposes, as reflected in the

1 records of the Corporation Commission, where such well is located
2 within the geographical boundaries of the surface estate on which
3 the solar energy developer intends to construct the solar energy
4 facility.

5 If the solar energy developer makes a search with reasonable
6 diligence and the whereabouts of a party entitled to notice cannot
7 be ascertained or the notice cannot be delivered, an affidavit
8 attesting to such diligent search shall be submitted to the
9 Corporation Commission.

10 D. Within sixty (60) days of publication of the notification in
11 a newspaper of general circulation as provided for in subsection B
12 of this section, the owner of the solar energy facility shall hold a
13 public meeting. Notice of the public meeting shall be published in
14 a newspaper of general circulation and submitted to the board of
15 county commissioners in the county or counties in which all or a
16 portion of the solar energy facility is to be located. The notice
17 shall contain the place, date, and time of the public meeting.
18 Proof of publication of the notice shall be submitted to the
19 Corporation Commission. The public meeting shall be held in the
20 county or in one of the counties in which all or a portion of the
21 solar energy facility is to be located.

22 E. With regard to the surface estate upon which the owner of a
23 solar energy facility intends to construct the facility, at least
24 sixty (60) days before entering upon the surface estate for the

1 purpose of commencement of construction, the owner shall provide
2 written notice, by certified mail, of its intent to construct the
3 solar energy facility to the parties described in subsection C of
4 this section.

5 The notice shall contain a map or plat of the proposed location,
6 with sufficient specificity to identify the elements of the solar
7 energy facility to be located on the governmental section and the
8 approximate date construction is proposed to commence. If the solar
9 energy developer makes a search with reasonable diligence and the
10 whereabouts of a party entitled to notice cannot be ascertained or
11 the notice cannot be delivered, an affidavit attesting to such
12 diligent search shall be submitted to the Corporation Commission.
13 Within thirty (30) days of receiving such notice, any party
14 described in subsection C of this section shall reciprocate, in
15 writing by certified mail, the relevant site, operational, and
16 infrastructure information sufficient to assist with the safe
17 construction and operation of the solar energy facility. This
18 information shall include American Land Title Association surveys,
19 if available, and technical specifications for existing subsurface
20 or surface improvements.

21 Any information provided by an oil and gas operator or solar
22 energy developer pursuant to this subsection shall be confidential
23 and proprietary. The parties shall:

1 1. Use such information solely for the purposes of this
2 section;

3 2. Not disclose such information to any third party without the
4 prior written consent of the disclosing party, except as required by
5 law or order of a court of competent jurisdiction or the Corporation
6 Commission; and

7 3. Upon written request of the disclosing party, return or
8 destroy all such information and certify the same in writing.

9 The confidentiality obligations of this subsection shall not be
10 limited by or contingent upon the terms of any landowner lease
11 agreement or surface use agreement. Violation of this provision
12 shall constitute grounds for the Corporation Commission to suspend
13 or revoke a permit issued under this act, in addition to any other
14 remedies available at law or in equity.

15 F. The owner of a solar energy facility shall not commence
16 construction on the facility until the notification and public
17 meeting requirements of this section have been satisfied. Upon the
18 commencement of the sixty-day notice required under subsection E of
19 this section, the owner shall notify the Corporation Commission that
20 such notice has commenced and shall include an affirmation that all
21 other notices and notifications required by this section have been
22 properly provided.

23 If an owner of a solar energy facility fails to submit any
24 information required by this section, the owner shall be subject to

1 an administrative penalty not to exceed One Thousand Five Hundred
2 Dollars (\$1,500.00) per day, per violation, as provided by law.

3 G. The provisions of this section shall only apply to
4 facilities that commence construction after May 1, 2027, and shall
5 not apply to any facilities that commenced construction before that
6 date, including any subsequent maintenance, repairs, modifications,
7 or other work on existing facilities.

8 SECTION 18. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 809.8 of Title 17, unless there
10 is created a duplication in numbering, reads as follows:

11 A. When applicable, a solar energy developer shall submit site
12 plans and fees for any new solar energy facility to the Office of
13 the Oklahoma State Fire Marshal for review. Such site plans shall
14 be submitted when the solar energy facility is sixty percent (60%)
15 complete in design development. The site plans shall include an
16 accurate representation of:

- 17 1. Photovoltaic modules;
- 18 2. Inverters;
- 19 3. Monitoring and control equipment;
- 20 4. Substations;
- 21 5. Collection lines;
- 22 6. Access roads;
- 23 7. Temporary construction areas;
- 24 8. Operation and maintenance facilities; and

1 9. Other relevant supporting infrastructure.

2 B. Review by the Office of the Oklahoma State Fire Marshal
3 shall be limited to compliance with applicable fire and building
4 safety codes, including:

5 1. The Oklahoma-adopted International Building Code, as
6 codified at OAC 748:20-2-1; and

7 2. The 2018 Edition of the International Fire Code, as codified
8 at OAC 748:20-4-1.

9 C. The Office of the Oklahoma State Fire Marshal shall complete
10 its review as soon as practicable, but in no event not later than
11 thirty (30) calendar days following receipt of complete site plans
12 and fees. In the event the Office of the Oklahoma State Fire
13 Marshal does not complete its review within thirty (30) calendar
14 days, any applicable permits and certificates shall be deemed
15 issued.

16 D. During the pendency of the review by the Office of the
17 Oklahoma State Fire Marshal, the following on-site activities may
18 proceed:

19 1. Timbering, clearing, and grubbing vegetation;

20 2. Civil grading and earthwork;

21 3. Installation of stormwater pollution prevention measures and
22 best management practices;

23 4. Installation of laydown areas and substation concrete
24 foundation pads, including rough grading and gravel;

1 5. Installation of racking systems, inverters, photovoltaic
2 modules, low-voltage collection systems, and above-ground
3 transmission poles;

4 6. Public road improvements, entrance installations, and
5 service road construction;

6 7. Placement of construction trailers with temporary power,
7 fiber connections, and portable sanitation facilities;

8 8. Sub-grade open trenching;

9 9. Installation of on-grade concrete foundations; and

10 10. Installation of structural columns and beams.

11 E. The Office of the Oklahoma State Fire Marshal may assess a
12 plan review fee at a rate of six cents (\$0.06) per square foot of
13 actual erected solar facilities, provided that the total fee shall
14 not exceed Five Hundred Thousand Dollars (\$500,000.00) for any
15 single solar energy facility. The amount of such fee shall have a
16 reasonable connection to the work actually performed by the Office
17 of the Oklahoma State Fire Marshal.

18 F. Of the fees collected pursuant to this section:

19 1. Seventy-five percent (75%) shall be distributed to the local
20 fire department providing primary fire protection services to the
21 jurisdiction where the facility is located, within sixty (60) days
22 of receipt. Funds distributed pursuant to this paragraph shall be
23 used solely for fire protection, fire prevention, inspections,
24

1 training, or emergency response activities related to the facility;
2 and

3 2. Twenty-five percent (25%) may be retained by the Office of
4 the Oklahoma State Fire Marshal for regulatory purposes.

5 G. If the Office of the Oklahoma State Fire Marshal delegates
6 any site plan review, permitting, or similar authority over a solar
7 energy facility to a recognized local authority having jurisdiction,
8 fees and timing shall continue to conform to subsections C and E of
9 this section.

10 H. The provisions of this section shall apply to solar energy
11 facilities designed to provide electricity to the grid, as well as
12 any utility-scale solar energy facility designed to deliver
13 electricity directly from a generating facility to a single end-use
14 customer.

15 SECTION 19. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 809.9 of Title 17, unless there
17 is created a duplication in numbering, reads as follows:

18 A. In addition to complying with the provisions of this act, the
19 owner of a solar energy facility shall comply with the provisions of
20 the Commercial Solar Facility Decommissioning Act in accordance with
21 Section 820 et seq. of Title 17 of the Oklahoma Statutes.

22 B. An owner shall submit evidence of financial assurance
23 sufficient to secure the performance of its decommissioning
24 obligations in accordance with the Commercial Solar Facility

1 Decommissioning Act on or before the tenth year of operation of the
2 facility and thereafter upon request by the Commission, but at least
3 once every five (5) years for the life of the solar energy facility.
4 The amount of such financial assurance shall be calculated in
5 accordance with the Commercial Solar Facility Decommissioning Act,
6 but shall not be less than one hundred twenty-five percent (125%) of
7 the estimate of the total cost of decommissioning, less the salvage
8 value of facility equipment and any portion of the value of such
9 equipment pledged to secure outstanding debt.

10 SECTION 20. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 809.10 of Title 17, unless there
12 is created a duplication in numbering, reads as follows:

13 The Oklahoma Corporation Commission shall have authority to
14 promulgate rules as necessary to implement the provisions of the
15 Oklahoma Solar Energy Development Act and to set fees necessary to
16 perform the duties and responsibilities of the Commission pursuant
17 to the act. The Oklahoma Corporation Commission shall have
18 exclusive jurisdiction to enforce the provisions of this act that
19 are within its authority.

20 SECTION 21. This act shall become effective November 1, 2026.

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